



TOOSPOINT CONSULTING

CONSULTING AGREEMENT

ToosPoint Consulting × Kreato Global

Effective Date: **TBD**
Document Type: **Consulting Agreement**
Classification: **Confidential**



This **Consulting Agreement** (the “Agreement”) is entered into between **ToosPoint Consulting** (“Consultant”) and **Kreato Global** (“Company”). The parties agree to the terms and conditions set forth herein.

1. Scope of Services

Consultant will provide strategic growth, business-development, and partnership-execution support to the Company across the following core focus areas:

Strategic LSP Partnerships

- Identification and prioritization of high-value LSP partnership opportunities aligned with the Company’s service mix and growth strategy
- Warm introductions to LSP decision-makers where appropriate, leveraging Consultant’s existing industry relationships
- Development of customized partnership positioning, capability presentations, and vendor applications
- Support for contract and rate negotiations, and build-out of long-term white-label and overflow partnerships
- Initial priority on positioning the Company as a strategic vendor with **Proprio** across interpreting, translation, localization, and adjacent service lines

Direct Client Growth & Market Expansion

- Identification of high-value prospects and design of targeted outreach campaigns across health-care, government, insurance, financial services, legal, enterprise, and BPO verticals
- Development of account strategies, sales messaging, and discovery-meeting support
- Proposal development, pricing strategy, and competitive positioning advisory
- Build-out and maintenance of a long-term sales pipeline

RFP Strategy & Management

- Identification of relevant public sector and private enterprise RFP opportunities and evaluation of bid/no-bid decisions
- Creation of proposal timelines and coordination of internal deliverables
- Drafting of technical and operational responses, staffing and implementation plans, and pricing review
- Final quality review before submission



Strategic Business Development Support

- Strategic advisory to leadership on market positioning, competitive analysis, and go-to-market strategy
- Partnership strategy, sales process optimization, growth planning
- Operational readiness for enterprise clients

Vendor & Enterprise Readiness

- Preparation of capability statements, vendor questionnaires, and operational documentation
- Quality assurance positioning and recruitment strategy alignment
- Service delivery readiness and enterprise presentation materials

Advisory Capacity. All recommendations made by Consultant are advisory in nature. Final decision-making authority on all business, commercial, and operational matters rests with the Company.

2. Compensation

Company agrees to pay Consultant a **monthly retainer of TBD USD** for services rendered under this Agreement. Consultant shall submit a monthly invoice on or near the first business day of each month. Payment is due **Net 15** from the invoice date, payable via **wire transfer, Zelle, Venmo, or PayPal**.

- The monthly retainer is a flat fee and is not contingent on a specific deliverable count beyond the milestones expressly identified herein
- No commission, revenue share, or success fee is payable under this Agreement; compensation is strictly the monthly retainer

3. Time Commitment

Consultant shall make available approximately **TBD hours per calendar week** in support of the services described herein. Hours may be scheduled flexibly to accommodate the needs of the Company and the availability of Consultant.

- Hours not used in a given week do not roll forward and do not accrue as a credit
- Material and sustained increases beyond the weekly commitment shall be discussed and agreed in writing, and may result in an adjusted retainer
- Consultant retains discretion over the methods, sequence, and timing of work, provided service obligations are met



4. Term and Termination

- This Agreement will begin on **TBD** (the “Effective Date”) and continue on a **month-to-month** basis until terminated.
- Either party may terminate this Agreement with **30 days written notice**.
- Upon termination, Company shall pay Consultant the prorated portion of the monthly retainer for services rendered through the effective termination date.

5. Independent Contractor

Consultant is an **independent contractor** and not an employee, agent, or partner of the Company. Consultant retains sole responsibility for all taxes, benefits, insurance, and obligations arising from Consultant’s business operations. Nothing in this Agreement shall be construed to create an employment, partnership, joint-venture, or agency relationship. Consultant has no authority to bind the Company or to enter into any agreement on the Company’s behalf without prior written authorization.

6. Confidentiality

Both parties agree to maintain the confidentiality of each other’s proprietary information, trade secrets, client and prospect lists, partner relationships, pricing data, financials, and business strategies disclosed in the course of this engagement. This obligation shall:

- Survive the termination of this Agreement for a period of **three (3) years**
- Not apply to information that is publicly available through no fault of the receiving party
- Not restrict either party from disclosures required by law or court order, provided that prompt written notice is given to the other party where lawful

7. Ownership of Work Product

All deliverables, sales materials, RFP responses, prospect lists, and work product specifically prepared by Consultant for Company under this Agreement shall, upon full payment of the applicable monthly retainer, be owned by Company. Consultant retains ownership of its pre-existing methodologies, templates, frameworks, outreach playbooks, and general know-how, and nothing in this Agreement shall be construed as a transfer of such pre-existing intellectual property. Consultant is granted a perpetual right to reference the engagement generally for portfolio and credentialing purposes, subject to the confidentiality obligations herein.



8. Non-Solicitation

During the term of this Agreement and for **twelve (12) months** thereafter, neither party shall directly solicit for employment any employee, contractor, or partner introduced by the other party in connection with this engagement, without the other party's prior written consent. General public job postings shall not be considered solicitation.

9. Limitation of Liability

Except for breaches of confidentiality or willful misconduct, neither party shall be liable to the other for indirect, incidental, consequential, special, or punitive damages arising out of or related to this Agreement. Consultant's aggregate liability under this Agreement shall not exceed the total fees paid by Company to Consultant during the three (3) months immediately preceding the event giving rise to the claim.

10. Governing Law

This Agreement shall be governed by and construed in accordance with applicable laws as agreed upon by both parties. Any disputes arising under this Agreement that cannot be resolved through good-faith negotiation shall be submitted to binding arbitration before commencing litigation. This Agreement constitutes the entire understanding between the parties with respect to its subject matter and supersedes all prior discussions and agreements. It may be amended only by a written instrument signed by both parties, and may be executed in counterparts, including by electronic signature.

IN WITNESS WHEREOF

the parties have executed this Agreement as of the date first written above.



Authorized Signature

Authorized Signature

ToosPoint Consulting

Consultant

Printed Name

Date

Kreato Global

Company

Printed Name

Date

CONFIDENTIALITY NOTICE: This document contains confidential and proprietary information belonging to ToosPoint Consulting and Kreato Global. Unauthorized disclosure, copying, or distribution of this document or the information contained herein is strictly prohibited.